

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BAKERLY, LLC, *Complainant*

v.

SEAFRIGO USA, INC., *Respondent*.

DOCKET NO. 22-17

Served: January 12, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON JOINT REQUEST FOR EXTENSION OF DISCOVERY DEADLINE

On December 21, 2022, the parties filed a Joint Request for Extension of Discovery Deadlines (“Joint Discovery Extension Request”). The parties assert that because of the complexity of their dispute, “involving over 800 separate shipments occurring over an extended period of time,” litigation will be “extremely time consuming...and expensive.” Joint Discovery Extension Request at 1. The parties request a 60-day extension of the discovery deadlines to engage in mediation before the Commission’s Office of Consumer Affairs and Dispute Resolution Services (CADRS) to try to mitigate litigation expenses, and state that the extension is necessary because “simultaneously engaging in mediation [and discovery], would not mitigate litigation expenses but instead compound them...” *Id.* They further assert that they have “served and responded to discovery requests,” but cannot complete discovery by the January 19, 2023 deadline in the Scheduling Order that issued on September 15, 2022 while engaging in mediation.

The Commission has a strong and consistent policy of encouraging settlements. “The resolution of controversies by means of compromise and settlement is generally faster and less expensive than litigation; it results in saving time for the parties, the lawyers, and the courts, and it is thus advantageous to judicial administration, and in turn, to government as a whole.” *Old Ben Coal Co. v. Sea-Land Ser., Inc.*, 18 S.R.R. 1085, 1092 (ALJ 1978) (quoting 15A AM. JUR. 2D *Compromise and Settlement* § 3 (1976)). The parties request an extension that is reasonable. Therefore, it is hereby ordered that the motion be **GRANTED**. Moreover, the parties must file a joint status report on February 20, 2023, to provide an update regarding the status of negotiations but not the parties’ positions. If a settlement is not reached, on March 21, 2023, the parties shall submit another status report and the schedule shall resume. If a settlement is reached, the parties must file a motion seeking approval of the settlement with a copy of the settlement.



Linda S. Harris Crovella
Administrative Law Judge